

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No. _____

-----X
SHAWN GRAVES,

Date Filed: February 18, 2021

Plaintiff,

- against -

Plaintiffs' designate Kings
County as the Place of Trial

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER FRANK HERNANDEZ, POLICE
OFFICER JAMIL MOYE, POLICE OFFICERS JOHN DOE #1, JOHN
DOE #2 and JANE DOE, #1, each intended to be other officers
involved in Plaintiff's arrest and detention, but whose names
are unknown to Plaintiff at this time.

The basis of venue is:
375 Blake Avenue, Apt #4B
Brooklyn, New York 11212

SUMMONS

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
February 18, 2021



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Goldberg & Chase, LLP
Attorneys for Plaintiff, *Shawn Graves*
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Brooklyn, NY 11242
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Defendants' Addresses Overleaf

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DEFENDANTS' ADDRESSES**The City of New York**

c/o Corporation Counsel
100 Church Street
New York, NY 10007

The New York City Police Department

1 Police Plaza
New York, New York 10038

Police Officer Frank Hernandez

73rd Police Precinct
1470 East New York Avenue
Brooklyn, New York 11211

Police Officer Jamil Myoe

73rd Police Precinct
1470 East New York Avenue
Brooklyn, New York 11211

John/Jane Does, 1-3

c/o Corporation Counsel
100 Church Street
New York, NY 10007

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHAWN GRAVES,

Index No:

Plaintiff,

- against -

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER FRANK HERNANDEZ, POLICE
OFFICER JAMIL MOYE, POLICE OFFICERS JOHN DOE #1, JOHN
DOE #2 and JANE DOE, #1, each intended to be other officers
involved in Plaintiff's arrest and detention, but whose names
are unknown to Plaintiff at this time.

Defendants.
-----X

Plaintiff, SHAWN GRAVES, by his attorneys, GOLDBERG & CHASE, LLP, alleges the following,
upon information and belief, as his Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant Police Officers' unlawful and improper imprisonment of plaintiff, prosecution of the plaintiff, physical assault, abuse, battery and harassment of plaintiff, and use of intimidation and excessive force upon plaintiff on November 25, 2019.

2. Plaintiff seeks declaratory relief pursuant to CPLR §3001 and 28 U.S.C. § 2201, compensatory and punitive damages for violation of plaintiff's civil rights pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks compensatory and punitive damages under State Law Tort claims.

JURISDICTION

3. This action is predicated upon violations of plaintiff's Civil Rights protected under the United States Constitution, including the Fourth, Fifth and Fourteenth Amendments thereto and actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

VENUE

4. That Venue for this action is placed in the County of Kings because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3).

NOTICE OF CLAIM

5. That on February 21, 2020, plaintiff caused a Notice of Claim to be served upon defendant, THE CITY OF NEW YORK.

6. The Notice of Claim was delivered electronically to the person designated by law as a person to whom such claims may be presented and served. Receipt by the City of New York was acknowledged by eClaim Receipt Number 202000065369.

7. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained.

8. That on October 21, 2020, plaintiff presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action.

9. That at least thirty days have elapsed since the service of the Notice of Claim and

Defendant, CITY OF NEW YORK, has either neglected, failed and/or refused to pay and/or adjust the claims within the statutory period of time.

10. This action has been started within one year and ninety days after the happening of the events upon which each claim is based.

PARTIES

11. Plaintiff, SHAWN GRAVES, was and continues to be a resident of the State of New York, County of Kings.

12. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

13. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK.

14. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER HERNANDEZ ,first name believed to be FRANK, Shield Number unknown (hereinafter "Hernandez").

15. At all times relevant, defendant HERNANDEZ was a duly appointed and acting police officer of the CITY OF NEW YORK.

16. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, POLICE OFFICER MOYE, first name believed to be JAMIL , Shield Number unknown (hereinafter "Moye").

17. At all times relevant, defendant MOYE was a duly appointed and acting police officer of the CITY OF NEW YORK.

18. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendantS, POLICE OFFICERS JOHN DOE #1, JOHN DOE #2 and JANE DOE #1, names and shield numbers presently unknown (hereinafter referred to as "Cops 1-3").

19. At all times relevant, defendant Cops 1-3 were duly appointed and acting police officers of the CITY OF NEW YORK.

20. At all times relevant, the individual defendants, were acting under the color of State Law.

21. At all times relevant, the individual defendants, were acting both in their individual and official capacity as employees of defendant, THE CITY OF NEW YORK.

22. Notwithstanding the unconstitutional and unlawful conduct, the actions of the defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of THE CITY OF NEW YORK.

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

23. That on or about November 25, 2019 at approximately 5:50 p.m. of that day, plaintiff, SHAWN GRAVES, was falsely and unlawfully arrested by defendants, its agents, servants and/or employees while plaintiff was driving his vehicle.

24. That the arrest occurred when plaintiff was stopped by Officers HERNANDEZ and MOYE, who were later joined by Cops 1-3 at or near Rockaway Avenue between Sutter Avenue and Belmont Avenue based upon no unlawful conduct on Plaintiff's part.

25. That the individual defendants, HERNANDEZ and MOYE, pulled-over plaintiff SHAWN GRAVES and proceeded to search his person and vehicle, without his permission and authority and

for no lawful reason.

26. That plaintiff was arrested by the individual defendants.

27. That plaintiff did not disobey any order from the individual defendants.

28. That plaintiff did not fail to comply with a directive from the individual defendants.

29. That the individual defendants, HERNANDEZ, MOYE and Cops 1-3, without reasonable cause, grabbed the plaintiff and in a violent and aggressive manner, assaulted and battered him by beating the plaintiff while he was standing alone outside his vehicle being hand cuffed.

30. That the individual defendants, HERNANDEZ, MOYE and Cops 1-3, verbally and physically abused plaintiff with obscenities and more physical abuse.

31. That during the course of plaintiff's arrest, HERNANDEZ and MOYE without probable cause, recovered a legally retained folding knife with less than a three inch (3") blade that was clipped inside the waistband of plaintiff's pants, and which Plaintiff explained was used by him in his work.

32. That the individual defendants, HERNANDEZ, MOYE and Cops 1-3, verbally intimidated plaintiff with threats and taunts and used his legal possession of said knife as a pretext for his arrest and prosecution.

33. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff.

34. That the physical assault and battery was unjustified and excessive by HERNANDEZ, MOYE and Cops 1-3, as plaintiff did not commit any act which would provoke such a violent response from the defendants, and, in fact, was punched in the face multiple times as he was

placed in hand cuffs.

35. That plaintiff was confined to the 73RD Police Precinct and Central Booking for an excessive period of hours prior to his arraignment.

36. That plaintiff had knowledge of this confinement.

37. That plaintiff did not consent to the confinement.

38. That plaintiff was prevented from leaving the confinement.

39. That during this confinement, plaintiff was fingerprinted and photographed by, and at the direction of, the defendants and was further physically and emotionally abused by them.

40. That plaintiff was thereafter taken to Criminal Court and arraigned.

41. That the charges levied against the plaintiff were substantially dismissed.

42. Plaintiff sustained great fear, emotional harm, disgrace, embarrassment and loss of self esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him by defendants as a result of the afore-referenced events including anxiety and stress and physical injuries which required medical treatment and caused him to incur the cost for medical care and a loss of wages.

43. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events.

**AS AND FOR A FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE FOURTH, FIFTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION
PREDICATED UPON FALSE ARREST AND IMPRISONMENT**

44. Plaintiff repeats and reiterates each and every allegation contained in the preceding

paragraphs with the same force and effect as if set forth more fully herein.

45. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the individual defendants, HERNANDEZ, MOYE and Cops 1-3, individually deprived plaintiff, SHAWN GRAVES, of the ***rights, privileges and immunities*** secured to him by the Constitution and laws of the United States and the Fourteenth Amendment.

46. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of the substantive and due process ***right to be free from unreasonable search and seizures*** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

47. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of his ***right to liberty*** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

48. As a result of the aforescribed actions, including the patently offensive physical and verbal conduct and threatening racial remarks made by defendants during the aforementioned seizure, arrest, incarceration and assault of plaintiff, these defendants individually deprived plaintiff, SHAWN GRAVES, of ***Equal Protection under the Law*** secured by the Constitution and laws of the United States and the Fourteenth Amendment.

49. The aforescribed conduct by these defendants were racially motivated and instigated by defendants for other than lawful reasons and without probable cause.

50. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

51. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

52. As a result of the foregoing, plaintiff has suffered damages in an amount in excess of the jurisdictional limit of all other Courts which would otherwise have jurisdiction over this matter.

**AS AND FOR A SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE FOURTH, FIFTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION
PREDICATED UPON USE OF EXCESSIVE FORCE**

53. Plaintiff repeats and reiterates each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

54. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, HERNANDEZ, MOYE and Cops 1-3, individually deprived plaintiff, SHAWN GRAVES, of the ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment.

55. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of the substantive and due process ***right to be free from unreasonable seizures*** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

56. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of his ***right to liberty*** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

57. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff, SHAWN GRAVES, of ***Equal Protection under the Law*** secured by the Constitution and laws of the United States and the Fourteenth Amendment.

58. The amount and type of physical force used upon plaintiff, SHAWN GRAVES, by these defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances.

59. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

60. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being.

61. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiff's constitutional rights.

62. As a result of the foregoing, plaintiff has suffered damages.

**AS AND FOR A THIRD CAUSE OF ACTION FOR DEPRIVING PLAINTIFF
OF EQUAL RIGHTS UNDER THE LAW PURSUANT TO THE
FOURTEENTH AMENDMENT TO THE UNITED STATES
CONSTITUTION PREDICATED UPON THE RACE BASED ANIMUS
EXHIBITED BY DEFENDANTS DURING THE FALSE ARREST,
INTIMIDATION AND THREATS, USE OF EXCESSIVE FORCE AND
INFLICTION OF EMOTIONAL AND PHYSICAL ABUSE**

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

64. The individual defendants, HERNANDEZ, MOYE and Cops 1-3, demonstrated race-based animus by subjecting plaintiff to patently offensive conduct and offensive and racially threatening remarks during the aforementioned arrest, incarceration, use of excessive force, infliction of emotional and physical abuse, assault and battery.

65. By reason of the foregoing actions, these individual defendants deprived plaintiff of his ***Equal Rights under the law***, in violation of the Fourth and Fourteenth Amendments, actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

66. The aforementioned conduct and use of race-based animus exhibited to plaintiff caused immediate injury in the form of physical and emotional pain, suffering, bruises, shock, fright, humiliation, disgrace, embarrassment and deprivation of plaintiff's constitutional rights.

67. As a result of the foregoing, plaintiff has suffered damages.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND DUE PROCESS RIGHTS TO BE FREE
FROM UNREASONABLE SEARCHES AND SEIZURES, AS PROTECTED
BY ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE ARREST AND IMPRISONMENT OF
PLAINTIFF WITHOUT PROBABLE CAUSE**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

69. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the individual defendants, HERNANDEZ, MOYE and Cops 1-3, individually deprived plaintiff, SHAWN GRAVES, of the ***rights, privileges and immunities*** secured

by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution.

70. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of the substantive and due process ***right to be free from unreasonable search and seizures*** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution.

71. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of his ***right to liberty*** without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution.

72. As a result of the aforescribed actions, including the patently offensive physical and verbal conduct and threatening remarks made by defendants during the aforementioned seizure, arrest, incarceration and assault of plaintiff, these defendants individually deprived plaintiff, SHAWN GRAVES, of ***Equal Protection under the Law*** secured by Article 1 Sections 1, 8, 11 and 12 of the New York State Constitution.

73. The aforescribed conduct by these defendants were racially motivated and instigated by defendants for other than lawful reasons and without probable cause.

74. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

75. As a result of the foregoing, plaintiff has suffered damages.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER ARTICLE 1 OF THE NEW YORK STATE
CONSTITUTION PREDICATED UPON THE USE OF EXCESSIVE FORCE**

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

77. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, HERNANDEZ, MOYE and Cops 1-3, individually deprived plaintiff, SHAWN GRAVES, of the ***rights, privileges and immunities*** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution.

78. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of the substantive and due process ***right to be free from unreasonable search and seizures*** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution.

79. As a result of the aforescribed actions, these defendants individually deprived plaintiff, SHAWN GRAVES, of his ***right to liberty*** without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution.

80. As a result of the aforescribed actions, including the patently offensive physical conduct and threatening racial remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff, SHAWN GRAVES, of ***Equal Protection under the Law*** secured by Article 1 Sections 1, 8, 11 and 12 of the New York State Constitution.

81. The aforescribed conduct by these defendants were racially motivated and instigated by defendants for other than lawful reasons and without probable cause.

82. The aforescribed acts of these individual defendants were intentional, willful,

malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

83. As a result of the foregoing, plaintiff has suffered damages.

SIXTH CAUSE OF ACTION FOR DEPRIVING PLAINTIFF OF EQUAL RIGHTS UNDER THE LAW PURSUANT TO THE ARTICLE 1 SECTION 11 OF THE NEW YORK STATE CONSTITUTION PREDICATED UPON THE RACE BASED ANIMUS EXHIBITED BY DEFENDANTS DURING THE FALSE ARREST, INTIMIDATION AND THREATS, USE OF EXCESSIVE FORCE AND INFLECTION OF EMOTIONAL AND PHYSICAL ABUSE

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

85. The individual defendants, Cop1, Cop2 and Cop3, demonstrated race-based animus by subjecting plaintiff to patently offensive conduct and offensive and racially threatening remarks during the aforementioned arrest, incarceration, use of excessive force, infliction of emotional and physical abuse, assault and battery.

86. By reason of the foregoing actions, these individual defendants deprived plaintiff of his *Equal Rights under the law*, in violation of Article 1, Sections 1, 8, 11 and 12 of the New York State Constitution.

87. The aforementioned conduct and use of race-based animus exhibited to plaintiff caused immediate injury in the form of physical and emotional pain, suffering, bruises, shock, fright, humiliation, disgrace, embarrassment and deprivation of plaintiff's constitutional rights.

88. As a result of the foregoing, plaintiff has suffered damages.

SEVENTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION PREDICATED UPON THE MALICIOUS PROSECUTION OF PLAINTIFF WITHOUT PROBABLE CAUSE

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

90. As a result of the afore described actions, including the criminal prosecution of plaintiff without probable cause, defendants, HERNANDEZ, MOYE and Cops 1-3, individually and collectively deprived plaintiff, SHAWN GRAVES, of the ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment.

91. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff, SHAWN GRAVES, of the ***right to be free from unreasonable search and seizures*** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

92. As a result of the aforescribed actions, these defendants, individually and collectively, deprived plaintiff, SHAWN GRAVES, of his ***right to liberty*** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

93. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

94. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

95. As a result of the foregoing, plaintiff has suffered damages.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR ASSAULT

96. Plaintiff repeats, reiterates and realleges each and every allegation contained in the

preceding paragraphs with the same force and effect as if set forth more fully herein.

97. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him.

98. As a result of the foregoing, plaintiff has suffered damages.

AS AND FOR A NINTH CAUSE OF ACTION FOR BATTERY

99. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

100. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered and physically abused causing serious physical and emotional harm to plaintiff.

101. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff.

102. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto.

103. As a result of the foregoing, plaintiff has suffered damages.

AS AND FOR A TENTH CAUSE OF ACTION FOR FALSE ARREST AND IMPRISONMENT

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

105. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff.

106. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff.

107. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto.

108. As a result of the foregoing, plaintiff has suffered damages.

AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL HARM

109. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

110. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff.

111. As a result of the foregoing, plaintiff has suffered damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
NEGLIGENT SUPERVISION AND RETENTION**

112. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

113. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers.

114. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers.

115. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers.

116. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in Copying out their official duties

and/or responsibilities.

117. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in Copying out their official duties and/or responsibilities prior to the date of the incident complained of herein.

118. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, attacked, threatened, intimidated, falsely arrested and imprisoned, plaintiff causing serious personal injury to plaintiff.

119. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department.

120. As a result of the foregoing, plaintiff has suffered damages.

AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION

121. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

122. As a result of the foregoing, plaintiff, SHAWN GRAVES, was, without just cause or

provocation, maliciously, recklessly, and/or intentionally charged and prosecuted with a crime without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff.

123. That this prosecution and these charges were continued without just cause or provocation, and without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff.

124. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally charged and prosecuted plaintiff without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff.

125. That the occurrence and damages sustained by plaintiff, SHAWN GRAVES, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, including defendants, Cop1, Cop2 and Cop3, without any provocation on the part of the plaintiff contributing thereto.

126. As a result of the foregoing, plaintiff has suffered damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

127. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

128. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually, jointly and/or vicariously by and through their agents, servants and/or employees.

129. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff.

130. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants, individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect conscious disregard for the safety and well being of others and specifically the safety and well being of plaintiff.

131. That the conduct of defendants acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff.

132. That the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited such a wanton dishonesty as to imply a criminal indifference to the defendants' civil obligations as public servants.

133. As a result of the acts stated above, plaintiff has suffered serious physical and emotional harm in the form of personal physical injuries, great stress and anxiety, a deprivation of liberty without probable cause, denial of due process, invasion of privacy, mental distress, damage to character and reputation and plaintiff will continue to suffer same in the future..

134. As a result of the foregoing, plaintiff has been damaged.

135. As a result of the foregoing, defendants, including defendant HERNANDEZ, MOYE

and Cops 1-3, should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff, SHAW GRAVES, respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the unlawful arrest and imprisonment of plaintiff.
2. As to the second cause of action, a declaration that plaintiffs' right to be free from unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the use of excessive force.
3. As to the third cause of action, a declaration that plaintiff's right to equal protection under the law as provided by the Fourteenth Amendment of the United States Constitution predicated upon the raced-base animus exhibited by the individual defendants during the occurrence complained of was violated.
4. As to the fourth cause of action, a declaration that plaintiff's substantive and procedural due process rights to be free from unreasonable searches and seizures, as protected by Article 1 of the New York State Constitution predicated upon the unlawful arrest and imprisonment of plaintiff was violated.
5. As to the fifth cause of action for violation of plaintiff's substantive and procedural due process right to be free from unreasonable searches and seizures under Article of the New York State Constitution predicated upon the use of excessive force, was violated.
6. As to the sixth cause of action, a declaration that plaintiff's right to equal

protection under the law as provided by Article 1 Section 11 of the New York State Constitution predicated upon the raced-base animus exhibited by the individual defendants during the occurrence complained of was violated.

7. As to the seventh cause of action, a declaration that plaintiff's rights under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the malicious prosecution of plaintiff without probable cause.

(B) As to the first through thirteenth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

(C) As to the first through fourteenth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein.

(D) As to the first through fourteenth causes of action, an award to plaintiff of the costs and disbursements herein.

(E) As to the first through seventh causes of action, an award of attorney's fees as provided under 42 U.S.C. § 1988, and

(F) Such other and further relief as this Court may deem just, proper and equitable

Dated: Brooklyn, New York
February 18, 2021



Donald Drew Goldberg, Esq.
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Attorneys for Plaintiff, *Shawn Graves*
26 Court Street, Ste 1503
Brooklyn, NY 11242
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Index No. _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SHAWN GRAVES,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER FRANK HERNANDEZ, POLICE OFFICER JAMIL MOYE, POLICE OFFICERS JOHN DOE #1, JOHN DOE #2 and JANE DOE, #1, each intended to be other officers involved in Plaintiff's arrest and detention, but whose names are unknown to Plaintiff at this time.

Defendants.

SUMMONS and VERIFIED COMPLAINT

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Attorney for Plaintiffs

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Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: 2/18/2021

Signature: _____



Print Name: Donald Drew Goldberg

Sir: Please take notice

Notice of Entry

That the within is a (certified) true copy of a _____ duly entered in the office of the clerk of the within named court on _____, 2021

Notice of Settlement

that an order of which the within is a true copy will be presented for settlement to the HON. _____ one of the judges of the within named court, at _____ New York on _____ at 9:30 A.M.

GOLDBERG & CHASE, LLP

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